

Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Murder Reference No. 661 of 2010

(The State vs. Shahid Iqbal)

Criminal Appeal No. 1743 of 2010

(Shahid Iqbal. vs. The State)

Criminal Appeal No. 2269 of 2010

(Muhammad Hussain. v. Khalid Mushtaq, etc.)

JUDGMENT

Date of hearing: 20.04.2015.

Appellant by: Hafiz Rizwan Aziz, Advocate.
(in Crl. Appeal No.1743/2010)

Ms. Sheeba Qaisar, Defence counsel
(in Crl. Appeal No.1743-2010)

Complainant by: Ch. Pervaiz Iqbal Gondal, Advocate.

State by: Mr. Humayoun Aslam, Deputy Prosecutor General.

Aalia Neelum, J.- Shahid Iqbal son of Javaid Iqbal, caste Jatt, resident of Jheranwali, Tehsil Gojra District T.T. Singh (Crl. Appeal No.1743 of 2010) along with Adnan Mushtaq son of Mushtaq Ahmad (since acquitted), Javaid Iqbal son of Ahmad Khan (since acquitted) and Khalid Mushtaq son of Mushtaq Ahmad (since acquitted) being involved in private complaint (complaint case No.10 of 2007), under Sections 302, 109, 34 P.P.C, and were tried by Mr. Mehar Tahir Nawaz Khan, Additional Sessions Judge, Gujrat. The learned trial court seized with the matter in terms of judgment dated 24.6.2010 convicted Shahid Iqbal son of Javaid

Iqbal (appellant) under Section 302(b) P.P.C. and sentenced him to death with the compensation of Rs.2,00,000/- payable to the legal heirs of Zulfiqar Ali-deceased and in default thereof, to further undergo six months simple imprisonment.

2. Feeling aggrieved by the judgment of the learned trial court, Shahid Iqbal, appellant has assailed his conviction by filing Criminal Appeal No.1743/2010. The learned trial Court forwarded Murder Reference No.661/2010 for the confirmation of death sentence inflicted upon the convict, namely, Shahid Iqbal, whereas Muhammad Hussain, complainant/appellant feeling aggrieved by the same judgment of the learned trial court, has preferred Criminal Appeal No.2269/2010 against the acquittal of respondents/accused, namely Khalid Mushtaq, Javed Iqbal and Adnan. As all the matters are arising out of one and the same judgment of the learned trial court, therefore, these are being disposed of through this consolidated judgment.

3. Precisely the facts leading to the conclusion of all the above stated matters are that in the private complaint (Exh.PL) filed by Muhammad Hussain (PW-6) is that on 11.12.2006 at about 1.30 p.m. his nephew Zulfiqar Ali son of Lal Khan was coming to his house, when he (Zulfiqar Ali) reached near his house (the complainant), Shahid Iqbal (the appellant) while armed with pistol 30-bore came there and made a straight fire hitting under the right armpit of Zulfiqar, nephew of the complainant, whereas second fire made by Adnan landed at front of left side of the chest of Zulfiqar, nephew of the complainant, who fell down in an injured condition. Thereafter the accused persons fled away, while making aerial firing. The complainant after hearing the firing, reached near his nephew (Zulfiqar), who succumbed to the injuries suffered by him.

The occurrence was witnessed by the complainant (PW-6), Muhammad Ashraf son of Rehmat Khan (given up) and Muhammad Inayat son of Mian Khan (given up as won over). The alleged occurrence took place on the abetment of Mushtaq son of Nawab Khan (since acquitted), Khalid son of Mushtaq (since acquitted), Javaid son of Ahmad Khan (since acquitted) and Zahid son of Javaid. Shahbaz Ahmad (given up), Muhammad Qasim Munawar (PW-9) had seen and heard the above cited accused while hatching the conspiracy on the dera of Mushtaq-accused. The motive behind the occurrence was that prior to the alleged occurrence, the deceased and accused persons quarreled with each other on different occasions. Due to this grudge, the accused-Shahid Iqbal (the appellant) along with his co-accused persons, after hatching the conspiracy committed murder of the deceased.

4. After the alleged occurrence, the complainant (PW-6) rushed towards the police station after leaving Ahsan son of Nawab near the dead body of deceased, Zulfiqar Ali for reporting the occurrence and he (PW-6) met with Ijaz Ahmad, S.I. (PW-3), who along with his companions, was on patrolling at Jheranwali Morr Kunjah.

5. Muhammad Ijaz, S.I. (PW-3) reduced into writing oral complaint (Ex.PH) of the complainant (PW-6) and the complainant (PW-6) signed as a token of its correctness and after completion of police *karawi*, Muhammad Ijaz, S.I. (PW-3) sent the same to the police station through Ghulam Abbas 1057/C whereupon formal F.I.R. (Ex.PH/1) was chalked out by Muhammad Mehdi, S.I. (PW-5). Thereafter investigation was entrusted to Mujahid Hussain, S.I. (since died), who visited the place of occurrence and collected

blood-stained cotton (Ex.PK), prepared un-scaled site plan (Ex.CW.1/1), prepared inquest report (Ex.CW-1/2), injury statement (Ex.CW-1/3), application for post-mortem of deceased (Ex.CW-1/4). The recovery memos prepared by Mujahid Hussain, S.I. (since died) were produced before the court by Aftab Ahmad (CW-1) by way of secondary evidence. The dead body of deceased-Zulfiqar Ali was escorted to A.B.L Hospital, Gujrat by Muhammad Aslam, 357/C (PW-2) for autopsy and after postmortem examination, last worn clothes i.e. Qameez (P-1), shalwar (P-2), bunian white colour (P-3), bunian Malta colour (P-4), one sealed dibbi, one currency note worth Rs.50/- (P-6), two coins of two rupees (P-7/1-2), one handkerchief (P-8), one screw (P-9), one tablet (P-10) were taken into possession by Mujahid Hussain, S.I. (since died) through recovery memo (Ex.PA). Thereafter, Masood Ahmad Bhatti, Draftsman (PW-4) prepared scaled site plans (Ex.PJ and Ex.PJ/1). Thereafter investigation came up before Mehdi, Khan, S.I. (CW-4), who arrested the accused-Shahid Iqbal (the complainant). On 16.12.2008 during the course of interrogation, after disclosure, Shahid Iqbal led to the recovery of weapon of offence i.e. 30-bore pistol (P-11) and he (PW-4) secured the same through recovery memo (Ex.CW-3/1) while preparing the site plan of place of recovery (Ex.DW-4/1). He also arrested the accused-Adnan Mushtaq (since acquitted) on 31.12.2008.

6. Having found the appellant guilty, the Investigating Officer prepared report under section 173 Cr.P.C and sent the same to the court of Sessions enrooted through the learned Illaqa Magistrate as provided under Section 190 (2) Cr.P.C. Being dissatisfied with the result of investigation, as the Investigating Officer did not record the statements of PWs Lal Khan, Asghar Ali and Sobia Arooj, widow of the deceased under Section 161 Cr.P.C, the

complainant filed a private complaint (Exh.PL) before the learned Illaqa Magistrate on 21.07.2007 with delay of approximately seven months and ten days whereas F.I.R. was lodged on the day of occurrence i.e. 11.12.2006. The learned Illaqa Magistrate sent the same to the worthy Sessions Judge, Gujrat for its entrustment to the court of competent jurisdiction. The learned trial court after hearing preliminary arguments, summoned all the accused persons to face their trial.

7. After the appearance of accused persons, they were formally charge sheeted by the learned trial court in terms of order dated 14.11.2007 respectively, to which they pleaded not guilty and claimed trial. The prosecution in order to advance its case, produced as many as twelve prosecution witnesses. Muhammad Hussain (PW-6) is the complainant of the case, whereas his testimony was supplemented by Mst. Sobia Arooj (PW-7) and Muhammad Qasim Munawar Hussain (PW-9). Maqsood Ahmad Bhatti, Draftsman (PW-9) prepared scaled site plans Exh.PJ and Exh.PJ/1 and handed over the same to the Investigating Officer on 14.12.2006.

8. Dr. Liaquat Ali Khan (PW-1), had conducted the postmortem examination upon the dead body of deceased, Zulfiqar Ali on 11.12.2006 at 8.30 pm and found the following injuries:-

INJURIES

- 1-A. Firearm wound of entry measuring 0.25 x 0.25 cm on left chest near left nipple blackening present.*
- 1-B. Above mentioned fire left chest cavity at right mid axillary line 6-cm below right arm pit.*

1-C. Re-entered injury No.1-Con medial size of right arm.

1-D. Firearm wound of exit 1-cm x 1-cm on lateral size of right arm.

OPINION.

According to doctor's opinion, injury No.1-A is sufficient to cause death because it ruptured heart and both lungs leading to cardio respiratory failure in ordinary course of nature. Probable time between injuries and death is immediate. Time between death and post mortem examination, 6 to 12 hours. Postmortem report is Ex.PA and diagram is Ex.PA/1.

Rest of the prosecution witnesses are formal in nature.

9. On 13.04.2010 Muhammad Hussain, complainant (PW-6) gave-up PWs Muhammad Ashraf, being un-necessary and Muhammad Inayat being won over by the accused-persons whereas PWs Lal Khan and Asghar being un-necessary and Shahbaz & Nawaz PWs being abroad and closed his evidence on 31.05.2010. However, the learned Deputy District Public Prosecutor vide his separate statement recorded on 31.05.2010, gave up Ansar Iqbal C/328 PW being un-necessary and tendered the report of Chemical Examiner as Ex.PM, report of Serologist Ex.PN and report of Forensic Science Laboratory Ex.PO in evidence. At the request of learned DDPP, the learned trial Court summoned the remaining PWs as CWs. Therefore, statements of four Court witnesses, namely, Aftaab Ahmad (CW-1), Imtiaz-ul-Haq (CW-2), Mazhar Hussain (CW-3) and Mehdi Khan, S.I. (CW-4) were also recorded by the learned trial Court.

10. The appellant was also examined under Section 342 Cr.P.C. Neither the appellant opted to appear in person as his own

witness under Section 342(2) Cr.P.C nor he produced any defence witness. While replying to a question, why this case and why the PWs and CWs have deposed against him, the appellant Shahid Iqbal made the following deposition:-

“Due to doubt and suspicion, I have been falsely implicated in this case. Real facts are that the deceased has been done to death by Naeem Akhtar, who was a maternal nephew of the deceased and he had developed illicit relations with Mst. Sobia Bibi. In the life of Zulfiqar, deceased to waive the hurdle in between Naeem Akhtar and Mst. Sobia Bibi, in the illicit relations deceased has been put to death by Naeem Akhtar. And ultimately after the death of the deceased Naeem Akhtar has contracted marriage with Mst. Sobia. So after having the manipulation, the false and fabricated case has been got registered against me.”

11. The learned trial court after evaluating the evidence available on record in light of arguments advanced from both sides, found the prosecution version proved beyond shadow of reasonable doubt resulting into conviction to the extent of appellant (Shahid Iqbal) while acquitted co-accused namely, Khalid Mushtaq, Javed Iqbal and Adnan (respondents in Criminal Appeal No.2269/2010) in the afore stated terms.

12. We have heard the arguments advanced by the learned counsel for the parties. We have also gone through the record with able assistance of learned counsel for the appellant and learned counsel for the complainant as well as Deputy Prosecutor General.

13. The case of the prosecution is that it was Shahid Iqbal, accused who fired first shot at Zulfiqar Ali-deceased and thereafter

Adnan fired which hit on the left side of chest of Zulfiqar Ali-deceased and thus killed him.

14. The prosecution for this purpose relied upon the ocular evidence of the complainant-Muhammad Hussain (PW-6) and Mst. Sobia Arooj (PW-7). The evidence showed that first fire shot was fired by Shahid (the appellant) which hit on the right armpit on the person of Zulfiqar Ali-deceased, while second fire was made by Adnan (since acquitted) which hit on the left side of the chest of the deceased-Zulfiqar Ali. All the witnesses i.e. Muhammad Hussain (PW-6) and Mst. Sobia Arooj (PW-7) consistently deposed that first fire was made by Shahid (the appellant) but Doctor Liaqat Ali Khan (PW-1) observed that injury No.1-B is exit wound of injury No.1-A. The injury No.1-B is on the left chest cavity at right mid axillary line 6 cm below right armpit. Doctor Liaqat Ali Khan (PW-1) opined that injury No.1-A is sufficient to cause death which was attributed to Adnan (since acquitted). Therefore, it means that the complainant was actually not an eye-witness of the occurrence. The sequence of firing, between the First Information Report (Ex.PH/1), private complaint (Ex.PL) and testimony of witnesses rendered the entire story inherently improbable and on this account, the prosecution story can be discarded as un-reliable.

15. Another aspect of the case is that the complainant (PW-6) stated in *Fard Beyan* (Exh.PH) Muhammad Ashraf (given up PW) and Muhammad Inayat (given up as won over) witnessed the occurrence. None of these witnesses, though their presence was admitted by the complainant at the place of occurrence were not examined by the prosecution. In *Fard Beyan* (Exh.PH) the complainant had not disclosed presence of other witnesses or family members at the spot. This also gets support from the site

plan (Ex.PJ) prepared on 12.12.2006 at the pointing of the complainant and above named witnesses. Whereas after lapse of seven months and ten days, the complainant (PW-6) through private complaint (Exh.PL) introduced Lal Khan (father of the deceased), Asghar Ali and Mst. Sobia Arooj (PW-7)-(widow of the deceased) as eye-witnesses of the occurrence in addition to earlier set of witnesses.

16. We also see the site plans (Exh.CW-1/1) and (Exh.PJ) which had been prepared contemporaneously and find that the complainant had not mentioned the points where other witnesses (named in the private complaint-Exh.PL) were present. The complainant (PW-6) seems to have effected a number of improvements in the private complaint (Exh.PL) as compared to original *Fard Beyan* (Exh.PH). He (PW-6) deposed during cross-examination that:-

“I had got recorded the name of Mst. Sobia Bibi as a witness into my FIR but the police has not intentionally recorded her name as PW. The same was not read over to me in token of its correctness. The police has not handed over to me the copy of the FIR on the same day but it was handed over to me 7/8 days after the occurrence. I did not move any application before any police officer about non-mentioning of name of Mst. Sobia Bibi as PW in my F.I.R. I made an application to the police to this fact but that application was torn into pieces by police but I did not retain the photocopy of the same.”

Mst. Soial Arooj (PW-7) deposed during cross-examination that:-

“After registration of the case Muhammad Hussain complainant was

in the possession of the copy of the FIR. My name was not mentioned in FIR as eye witnesses. To this fact, I personally never complained to any quarter about the missing of my name in the FIR. Only the complainant used to make complain regarding this fact. The complainant has not made any complaint to any police officials for the non-assertion of my name in the FIR.

17. The private complaint (Exh.PL) is silent about the fact that F.I.R. (Exh.PH/1) was not read over to the complainant and copy of the F.I.R. was not provided to him. Absence of these facts creates considerable doubt about the correctness of the evidence of Muhammad Hussain (PW-6) and Mst. Sobia Arooj (PW-7). Thus, we have no hesitation in holding that the witnesses, who were named in the *Fard Beyan* (Exh.PH) had not come to the court as eye-witnesses purposely, which is fatal for prosecution evidence. The matter does not stop here. There is yet another serious infirmity which further deepens the suspicion and casts cloud on the credibility of the complainant (PW-6) and prosecution story. Mst. Sobia Arooj (PW-7) deposed during cross-examination that *"In the days of occurrence my father-in-law Lal Khan was operated upon for Pitta".* There can not be any manner of doubt that the complainant (PW-6) has witnessed the occurrence. During cross-examination, Muhammad Hussain (PW-6) admitted that *"I mentioned in my FIR that hearing the report of firing I reached at the spot. It is correct that when I reached at the spot my deceased nephew had already expired."* It is also noted by us that through private complaint (Exh.PL) the complainant (PW-6) also improved his case and introduced witnesses of abetment namely Shahbaz Ahmad (given up) and Muhammad Qasim (PW-9) by increasing

number of accused, which casts a serious doubt about the reliability of the testimony of the complainant-Muhammad Hussain (PW-6). As mentioned above, there are clear contradictions and in-consistencies in the two versions of the complainant (PW-6), as mentioned in the F.I.R. as well as in the private complaint. The material witnesses including important eye-witnesses were withheld by the prosecution. The private complaint had been filed belatedly i.e. more than seven months and ten days.

18. Another important aspect of the case which can not go un-noticed is that while lodging the crime report and private complaint, the complainant-Muhammad Hussain (PW-6) in his examination-in-chief has stated that occurrence took place on 11.12.2006 at 1:30 p.m. and he informed the police about the occurrence at 2:00 p.m. through a *Fard Beyan* (Exh.PH) and police registered the case F.I.R. No.753 of 2006, under Sections 302, 109, 34 P.P.C., at Police Station, Kunjah at 2:25 p.m. Though the incident in question had taken place at 1:30 p.m. and reported to the police at 2:00 p.m. at *Chowk Jheranwali* and formal F.I.R. was chalked out at 2:25 p.m. Whereas in the inquest report (Exh.CW-1/2) in item No.3, time of information received about occurrence was mentioned at 1:30 p.m. on 11.12.2006, itself creates doubt about the time of the occurrence. It should be borne in mind the time of alleged occurrence is not the same as stated by the complainant (PW-6). We have noticed that in the inquest report, in item No.11, it was mentioned “**Blood Frozen**”. This shows that death had occurred much earlier to the time mentioned by the prosecution. We further noticed that Doctor Liaqat Ali (PW-1) who conducted the postmortem examination had noted that the rigor mortis present more in upper parts of body and low in lower extremities. He (PW-1) in his evidence had stated that in winter season, rigor

mortis developed between 12 to 24 hours and further remains constant for further 12 hours. If we apply the yardstick as spoken by PW-1 of the starting of rigor mortis to the facts of the case, the death must have occurred prior to 1:30 p.m. because if the rigor mortis starts within 12 to 24 hours as the starting time, it would take time to reach different parts of the body, therefore, we think it fit to take upper limit of rigor mortis reaching the entire body. Keeping in view if we work backwards, then we noticed that death had not taken place on the time given by the prosecution witnesses rather death had occurred before 1:30 p.m., which also got support from the inquest report (Exh.CW-1/2) wherein it was recorded that blood was frozen. It indicated that the incident did not take place as stated by the prosecution. This also created doubt about the time of occurrence. It is also noted that *Fard Beyan* (Exh.PH) of the complainant (PW-6) was reduced into writing by Ijaz Ahmad, S.I. (PW-3) at 2:00 p.m. at *Chowk Jheranwali*, who proceeded to the place of occurrence after sending the *Fard Beyan* to the police station.

Whereas, from the deposition of Muhammad Hussain (PW-6) place of reporting the occurrence and place of occurrence also becomes doubtful, as Muhammad Hussain (PW-6) deposed during cross-examination that:

“Police came at the spot at 2:00 p.m. when the police came at the spot, I along with Muhammad Ashraf, Inayat, Ahsan, Muhammad Hussain, Nawaz, Zeshan, Shahbaz, Altaf r/o Jheranwali were present at spot and Muhammad Qasim, Shahbaz Cheema, Muhammad Razzaq, Ali Raza, Zaheer, Ijaz, Anwar and Bilal Ashraf r/o Kot Pannah, Tesil Hafizabad, were also present there.”---

Dead body was lying in the street on

**the ground in front of the house of
deceased.”**

19. This deposition of the complainant (PW-6) creates doubt about the place of incident and place of reporting of the occurrence to the police. Thus, in our opinion, above deposition of the complainant (PW-6) makes his evidence doubtful.

20. At the cost of repetition, we may mention here that as per prosecution version, the appellant made second fire shot which hit on the right armpit on the person of Zulfiqar Ali-deceased, while second fire was made by Adnan (since acquitted) which hit on the left side of the chest of the deceased-Zulfiqar Ali. It has come on the record with same sequence of firing through ocular deposition of the complainant (PW-6). If this portion of the prosecution evidence is scrutinized with care and caution, the same squarely contradicts the medical evidence especially when the Doctor (PW-1) who conducted the postmortem examination, opined that all injuries were caused by a single fire. He (PW-1) during cross-examination admitted that injury No.1-B is exit wound of injury No.1-A. Moreover, from the careful scrutiny of the medical evidence, it is spelled out that one metallic foreign body was also recovered, which shows that fire arm projectile fired from near contact range on the body of the deceased which aspect further contradicts the ocular account creating serious dents on the prosecution version, going to its roots. Reliance is placed on the ratio *decidendi* of august Supreme Court of Pakistan in the case of “**Muhammad Tufail v. The State”** (NLR 2002 Criminal 636); wherein it was held as under:-

*“Ocular evidence would be
reliable when there are neither*

material discrepancies nor contradictions between ocular and medical evidence.”

Similar view was further affirmed by the august Supreme Court of Pakistan in the reported case “**Muhammad Safdar v. The State**” (NLR 2002 Criminal 683). It, therefore, means that the complainant was actually not an eye-witness of the occurrence, as medical evidence contradicted the ocular account.

21. Moreover, it is noticed that no crime empty was secured from the place of occurrence. We have noted that Dr. Liaquat Ali (PW-1) who conducted postmortem of the dead body of the deceased-Zulfiqar Ali recovered one metallic foreign body from the clothes at the side of right arm, sealed in jar and handed over to police. We have noted that the said metallic body was neither sent to the Forensic Science Laboratory for its comparison with the pistol 30-bore P-11 recovered on the pointing of the appellant nor the same was exhibited in evidence of the prosecution. Thus, it was established from the evidence of Doctor Liaquat Ali (PW-1) that metallic body was recovered and the same was handed over to the police, therefore, an adverse inference is to be drawn within the meaning of Article 129 (g) of Qanun-e-Shahadat, 1984 that had the metallic body, been sent to Forensic Science Laboratory for its comparison then the said report would have been un-favourable to the prosecution. Reliance is placed on case reported as “**The State and others v. Abdul Khaliq and others**” (PLD 2011 SC 554).

22. The report of Forensic Science Laboratory, Punjab, Lahore Exh.PD is only to the effect that the weapon was allegedly recovered from the accused/appellant was in working

contradiction. So, the recovery of the weapon from the accused is of no consequence.

23. The motive set up by the prosecution in the private complaint (Exh.PL) and F.I.R. (Exh.PH/1) and deposed about it by the complainant-Muhammad Hussain (PW-6) have been found by us to have remained un-proved. The prosecution case in this regard was vague and can hardly inspire confidence. The complainant (PW-6) deposed during cross-examination that:-

“So far concern the previous quarrel pertaining to motive no report was made by us to the police. I also did not produce any witness of the motive during the investigation of this case.”

In the circumstances, we can not avoid the conclusion that the motive, as alleged, was an afterthought and has not been proved by any credible evidence.

24. The defence plea taken by the appellant and his co-accused has not been proved. However, it is settled principle of law that the prosecution has to stand on its own legs. It was for the prosecution to prove the charge beyond any shadow of doubt. Moreover, the prosecution can not take any benefit of weakness of defence plea. In the case of “**Shera Masih and another v. The State**” (PLD 2002 SC 643), it has been held that:-

“----Defence plea of the accused even if is not supported by any evidence direct or circumstantial and is discarded being improbable, still it will not be a circumstances to prove the guilt of an accused an the

prosecution has to establish its case by standing on its own legs”.

25. All the above narrated facts and circumstances lead this Court to only one conclusion that the whole prosecution case seems to be hinging upon conjectures and surmises and it had badly failed to lead incriminating, corroborative/ independent evidence to bring home guilt of the accused in the case of capital charge. The learned trial court was not justified in convicting the appellant while basing upon such un-trustworthy, un-corroborated evidence and conviction passed by the learned trial court in the circumstances is against all canons of law recognized for the dispensation of criminal justice. As per dictates of law, benefit of every doubt is to be extended in favour of the accused. In the case of **“Muhammad Akram v. The State”** (2009 SCMR 230), it has been held as under:-

*“--Benefit of doubt----Principles---
For giving the benefit of doubt it is not necessary that there should be many circumstances creating doubts---Single circumstance creating reasonable doubt in a prudent mind about the guilt of accused makes him entitled to its benefit, not as a matter of grace and concession, but as a matter of right.”*

26. It is golden principle of law that the Court should let off 100 guilty but should not convict one innocent person. In the case of **“Ayub Masih v. The State”** (PLD 2002 SC 1048), it has been held by the Hon’ble Supreme Court of Pakistan that:-

“----It is hardly necessary to reiterate that the prosecution is obliged to prove

its case against the accused beyond any reasonable doubt and if it fails to do so the accused is entitled to the benefit of doubt as of right. It is also firmly settled that if there is an element of doubt as to the guilt of the accused the benefit of that doubt must be extended to him. The doubt of course must be reasonable and not imaginary or artificial. The rule of benefit of doubt, which is described as the golden rule, is essentially a rule of prudence which can not be ignored while dispensing justice in accordance with law. It is based on the maxim, "it is better that ten guilty persons be acquitted rather than one innocent person be convicted". In simple words it means that utmost care should be taken by the Court in convicting an accused. It was held in " The State v. Mushtaq Ahmed" (PLD 1973 SC 418) that this rule is antithesis of haphazard approach or reaching a fitful decision in a case. It will not be out of place to mention here that this rule occupies a pivotal place in the Islamic law and is enforced rigorously in view of the saying of the Holy Prophet (P.B.U.H) that the "mistake of Qazi (Judge) in releasing a criminal is better than his mistake in punishing an innocent".

27. The upshot of the above discussion is that the prosecution had badly failed to bring home charge against the appellant beyond any reasonable doubt, therefore, in the interest of safe administration of Criminal Justice, Crl. Appeal No.1743 of 2010 filed by Shahid Iqbal, appellant is **accepted in toto.** The sentence awarded by the learned Additional Sessions Judge, Gujrat vide judgment dated 24.06.2010 is **set aside** and the appellant is acquitted of the charge. The appellant-Shahid Iqbal is

ordered to be **released forthwith**, if not required in any other case.
Murder Reference No.661 of 2010 is answered in the negative
and the sentence of death awarded to Shahid Iqbal son of Javaid Iqbal, Caste Jatt Warraich, R/o Jheranwali, Tehsil & District, Gujrat (convict) is **Not Confirmed**.

28. So far as **Criminal Appeal No.2269 of 2010** seeking conviction under Section 302 (b) P.P.C., of respondent No.1-Khalid Mushtaq, respondent No.2-Javed Iqbal and respondent No.3-Adnan Mushtaq is concerned, for the above-stated reasons, the same has no weight, which is accordingly **dismissed**.

(Syed Shahbaz Ali Rizvi)
Judge

(Aalia Neelum)
Judge

Approved for reporting.

Judge

Judge